

Authority for Personal Data
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The Minister for Legal Protection
P.O. Box 20301
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Date

July 3, 2023

Our reference

z2022-7003

Your letter dated

December 14, 2022

Your reference

4273110

Subject

Ministerial regulation Bibob forms 2023

Dear Mr. Weerwind,

In your letter dated December 14, 2022, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft regulation for the establishment of forms for the provision of data and documents as well as for the findings of the own investigation under the Act on the Promotion of Integrity Assessments by Public Administration (hereinafter: the draft).

The AP has examined whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that, among other things, the principle of proportionality is met, by:

1. The draft being suitable to achieve the pursued objective of general interest or the requirements for the protection of the rights and freedoms of others (suitability);
2. The objective not being reasonably achievable in an equally effective manner by another means that infringes less on the fundamental rights of the data subjects (subsidiarity);
3. The interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. The draft being sufficiently clear and precise regarding the scope and being predictable in its application (legal certainty);
5. The draft sufficiently indicating under which circumstances and conditions personal data may be processed, thereby providing safeguards for the protection of personal data (substantive and procedural safeguards); and
6. The draft being binding under national law.

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The AP notes that the necessity of requesting certain data on the Bibob questionnaire is not established (points 1, 2, and 3). Furthermore, there is a lack of a legal basis for requesting the citizen service number (bsn) of third parties¹ (point 6). The AP has objections to the draft on these points and advises against continuing the procedure unless the objections are resolved.

Scope of the draft

Article 7a of the Act on the Promotion of Integrity Assessments by Public Administration (Bibob Act) establishes a legal basis for requesting and providing the data and documents from the data subject that are necessary for a Bibob investigation in all areas where the government is authorized to apply the Bibob Act. This concerns both the areas covered by administrative law, such as permits and subsidies, and the areas covered by private law, such as government contracts and real estate transactions.

Article 7a, paragraph 5, of the Bibob Act states that one or more forms for the data request from the data subject are established by ministerial regulation. This regulation further elaborates on this provision.

The amendment of the Bibob Act as of August 1, 2020² necessitated an update of the Bibob forms regulation. In this context, Member of Parliament Van der Graaf (Christian Union) submitted a motion in which she asked the government "to consider how the Bibob questionnaires can be made clearer, more concrete, and more effective."³ This task has led to a significant change, particularly in the structure of the questionnaires.

Advice

General

Article 7a, paragraph 2, of the Bibob Act reads as follows:

The data subject provides the administrative body or the legal entity with a public task with the data and documents to enable them to conduct their own investigation. This data and documents include at least:

- a. the name, address, and place of residence or establishment of the data subject;
- b. the name, address, and place of residence of the person representing the data subject;
- c. the citizen service number, as referred to in Article 1, under b, of the Act on General Provisions on Citizen Service Numbers, of the person referred to in items a and b;
- d. the registration number with the Chamber of Commerce;
- e. the legal form of the data subject;
- f. the trade name or trade names used or previously used by the data subject;

¹ Others than the data subject as referred to in Article 1 of the Bibob Act.

² Stb. 2020, no. 278.

³ Parliamentary Papers II 2019/20, 29911, no. 267.

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g. the name, address, and residence of, where applicable:

- 1°. the manager of the concerned party;
- 2°. the person with authority over the concerned party;
- 3°. the provider of assets for the concerned party;
- 4°. the subcontractor of the concerned party;
- h. the method of financing.

However, the Bibob questionnaire also requests information that is not included in Article 7a, second paragraph, parts a through h, of the Bibob Act. The basis for this is the phrase "in any case" in Article 7a, second paragraph, of the Bibob Act. The explanatory notes do not address the necessity of requesting this information.

It must be assumed that the legislator at that time carefully weighed the necessity of requesting the

information that is included in Article 7a, second paragraph, parts a through h, of the Bibob Act.

This does not apply to the other information in the form. The necessity of requesting this information is therefore not automatically established.

The AP advises that the necessity of requesting this information should be justified.

Citizen Service Number

The Bibob questionnaire also asks for the citizen service number (bsn) of ultimate managers, the bsn of ultimate persons with authority, the bsn of asset providers, and the bsn of landlords/lessors/those who allow a property or area to be used.

It is evidently intended that the concerned party - who fills out the form - requests the bsn from these third parties. However, according to Article 46 of the Implementation Act of the General Data Protection Regulation (UAVG), this cannot be based on a ministerial regulation. This can only be done by formal law. But this request is not regulated in the Bibob Act. Therefore, the intended use is not permitted under Article 46 UAVG.

According to Article 5, first paragraph, part a, of the GDPR, the request by the administrative body for the bsn of these third parties via the questionnaire is in violation of the GDPR.

4 Appendix 1 of the draft.

5 In particular, questions 13, 19-22, and 24-27.

6 Questions 5 and 6. See for the definition of "manager" Article 1 of the Bibob Act.

7 Questions 9 and 10. See for the definition of "person with authority" Article 1 of the Bibob Act.

8 Questions 14-16. See for the definition of "asset provider" Article 1 of the Bibob Act.

9 Questions 24 and 26.

10 Article 46, first paragraph, UAVG. It is not obvious that Article 46, second paragraph, UAVG - which indicates that this could possibly also be done by general administrative regulation - would apply here, as the request for bsns between citizens is very different from the regular bsn regime. In the legislative proposal for the Data Protection Consolidation Act, Article 46, second paragraph, UAVG is being removed. See for the background of this, Parliamentary Papers II, 2022-2023, 36 264, no. 3, p. 34.

11 Or any other law in formal sense.

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The AP advises to remove the citizen service number from questions 5, 6, 9, 10, 14-16, 24, and 26, as the formally legal basis required for this is lacking.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to know when publication is expected, as soon as this is known.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman